

## IN CONTEXT

### FOCUS

#### International law

### BEFORE

**1950** The Fourth Geneva Convention becomes the foundation of global humanitarian law.

**1998** The Rome Statute creates the International Criminal Court (ICC).

### AFTER

**2005** The ICC issues its first indictment against three Ugandan rebel commanders for war crimes and crimes against humanity.

**2009** The trial begins of Thomas Lubanga, a rebel fighter in the Democratic Republic of Congo. He is later convicted of war crimes, the ICC's first conviction.

**2019** The ICC authorizes an investigation into alleged crimes against humanity in Myanmar (Burma).

**T**he idea of an international tribunal to prosecute war crimes dates back to the period after World War I and arguments over trying Kaiser Wilhelm for starting the conflict. It wasn't until after World War II, however, that the world's first international criminal tribunal was created. The Nuremberg and Tokyo tribunals prosecuted the senior political and military leaders of Germany and Japan for the actions of their troops during the war, the Holocaust, and their responsibility for starting the



**The ICC's logo** is clearly visible on a glass wall in front of its headquarters in The Hague, the Netherlands. This, the Court's first permanent premises, was opened in 2015.

war. But these tribunals were not permanent, and after they had delivered their final judgments, they ceased to operate.

During the Cold War, tensions between the Soviet Union (USSR) and the United States meant that there was no consensus at the United Nations (UN) on tackling international crimes. It was only after the end of the Cold War in 1991 that the idea of a permanent international criminal court was examined. The outbreak of civil wars in which horrific crimes were committed in the former Yugoslavia and Rwanda led to the creation of war crimes tribunals (1993–2017, Yugoslavia; 1994–2015, Rwanda) to deal with those specific conflicts. In the late 1990s, the UN General Assembly set up a series of meetings to create a new international court. At the final meeting in Rome in 1998,

a treaty known as the Rome Statute of the International Criminal Court was adopted and, as of 2019, it had 123 signatories. The International Criminal Court (ICC) opened in The Hague in 2002 and issued its first indictments in 2005.

The ICC deals with four types of international crime, all of which are contained in the Rome Statute: war crimes, crimes against humanity, genocide, and the crime of aggression. The Rome Statute also clarifies how trials are to be conducted, the rights of defendants in ICC trials, and other aspects of the Court's administration.

### International crimes

War crimes relate to the conduct of armed hostilities either between states or in situations where there are organized armed groups of rebels fighting the government of a state. War crimes originated with the 1899 and 1907 Hague Conventions relating to the methods of permissible warfare and were later developed in the Geneva Conventions, which regulate both